

10.	23CV1771	MADRONA VINEYARDS L.P ET AL VS. JERRY VISMAN, AN INDIVIDUAL ET AL
MOTION TO DISMISS		

Defendants/Cross-Complainants, Michelle Visman, personal representative of the Estate of Jerry W. Visman, deceased, and High Hill Ranch, LLC (“Defendants”), filed a Motion to Dismiss Madrona’s Quiet Title Causes of Action for Failure to Join Indispensable Parties and for Noncompliance with the Court’s Order on June 15, 2026. A Request for Judicial Notice was filed on the same date.

Background

On April 23, 2026, the Court ordered the joinder of Frances “Jean” Reinders dba Fudge Factor Farm (“Fudge Factory”) and Phylis McGee (“McGee”) as Defendants to its quiet title actions pursuant to Code of Civil Procedure § 389 because they are indispensable parties to the causes of action (the “Order”). The Court ordered that Plaintiff, Madrona Vineyards L.P. (“Plaintiff”) to add Fudge Factory and McGee as Defendants to its operative complaint and their refusal to do so would result in the dismissal of its complaint without prejudice.

On May 27, 2026, Plaintiff filed its Second Amended Complaint (“SAC”) which added a “joinder” cause of action against Fudge Factory and McGee; however, no changes were made to its quiet title causes of action. Defendants attempted to meet and confer regarding this issue and Plaintiff confirmed that they are not asserting prescriptive easement claims against the Fudge Factory and McGee. Defendants assert that this is inconsistent with the Court’s April 23, 2026, Order.

Judicial Notice

Defendants seek judicial notice of the following: 1) Exhibit A to Plaintiff’s First Amended Complaint filed December 12, 2023; 2) Judgement as to Certain Issues Severed for Trial filed October 28, 1986 (Case No. 40145); 3) Parcel Map recorded November 17, 1976, in Book 13 of Parcel Maps at Page 13; 4) High Hill Ranch’s Motion to Compel Joinder of Indispensable Parties filed on March 25, 2026; 5) Plaintiff’s Opposition to High Hill Ranch’s High Hill Ranch’s Joinder Motion filed April 6, 2026; 6) High Hill Ranch’s Reply in Support of Joinder Motion filed on April 10, 2026; and 7) Court’s Order granting High Hill Ranch’s Joinder Motion entered on April 23, 2026.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, “[r]ecords of (1) any

court of this state or (2) any court of record of the United States or of any state of the United States.”

Section 452 provides that the court “may” take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court “shall” take judicial notice of any matter “specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter.” Cal. Evid. Code § 453.

While the requests made by Defendants fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Defendants provided Plaintiff and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Defendants have satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Legal Principles

Code of Civil Procedure § 389(a) provides:

(a) A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.

Discussion

Defendants argue that Plaintiff’s “nominal defendant” approach is improper joinder and in direct violation with the Court’s Order. Defendants contend that Plaintiff intentionally filed its SAC in a manner that does not substantively join Fudge Factory and McGee to the quiet title claims which is the same defect the Court ordered Plaintiff to correct. Pursuant to the Court’s order, Defendants request the Court dismiss Plaintiff’s quiet title causes of action regarding Easements 1 and 2 (causes of action 1, 2, 4, 5, 7, and 8; collectively “Quiet Title Claims”), and any derivative causes of action dependent on alleged interference with Easements 1 and 2 (causes of action 10, 11, 13, 15, 16, 18, 19) pursuant to Code of Civil Procedure § 389(b) and the Court’s Order.

Defendants contend that the SAC fails to identify Fudge Factory or McGee's real property interests as part of its Quiet Title Claims, does not seek quiet title against these indispensable parties, and does not otherwise plead how or why Plaintiff is entitled to a judgment across all parcels making up the alleged Easement 1 and 2 corridors. The only substantive addition is the new cause of action for "Joinder Based on Indispensable Party" which acknowledges Fudge Factory and McGee own portions of High Hill and Exit Roads and recognizes the Court ordered these Parties to be joined.

Defendants assert that Plaintiff's nominal inclusion of a party is not enough if the controversy affecting the party's rights is not actually before the Court. By doing so, the SAC fails to comply with the Court's Order regarding complete relief cannot be accorded because Plaintiff cannot obtain the unrestricted access it seeks without a judicial determination of its asserted easement rights over all portions of the access corridors, including those owned by Fudge Factory and McGee. The SAC also does not properly plead that Fudge Factory and McGee's interests are already at issue, nor does it address the risk of inconsistent judgments.

Plaintiff argues that the Court did not require Plaintiff to make specific allegations or assert specific causes of action against Fudge Factory and McGee; nevertheless, the SAC's prayer seeks to quiet title in a manner so "that no defendant has any interest in the easements adverse to Plaintiff." Plaintiff contends that now that Fudge Factory and McGee are joined as Parties, Defendants do not have standing to challenge the claims against them.

Additionally, the Motion as to Fudge Factory is or will be moot because there is no dispute between Plaintiff and Fudge Factory. Plaintiff further asserts that Defendants' claim that a party cannot have different rights over different portions of a roadway is not supported by California law. Lastly, Plaintiff argues that the Court did not rule that as a matter of law, a party cannot acquire easement rights over only a portion of a roadway, nor did it rule that Plaintiff was required to bring specific causes of action against these parties, as the Court's concern was to ensure that the parties have the opportunity to be heard with respect to how their properties may or may not be impacted by Plaintiff's easement claims over the neighboring High Hill Ranch property.

Plaintiff's SAC names Fudge Factory and McGee in the caption and in the following paragraphs:

- Preliminary Allegations:
 - ¶ 9: Defendant Frances "Jean" Reinders is an individual residing in the County of El Dorado, and is doing business as Fudge Factory Farm ("Fudge Factory").
 - ¶ 10: Defendant Phyllis McGee ("McGee") is an individual residing in El Dorado County.
- Twentieth Cause of Action – Joinder Based on Indispensable Party:

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- ¶ 269: On information and belief, Fudge Factory Farm is located at certain real property commonly known as 2860 High Hill Rd, Placerville, California 95667 (the “Fudge Factory Property”), and holds an easement for ingress and egress over portions of High Hill Road. Plaintiffs are informed and believe that a portion of High Hill Ranch Road is located on the Fudge Factory Property.
- ¶ 270: On information and belief, McGee is the owner of real property located at 3131 Carson Road, Placerville, California 95667 (the “McGee Property”), which operates McGee’s Christmas Tree Farm. The McGee Property is located immediately to the west of High Hill Ranch along Carson Road and across from Exit Road. On information and belief, McGee is the owner of a portion of Exit Road.
- ¶ 271: On or about April 17, 2026, the Court granted High Hill Ranch’s Motion to Compel Joinder of Indispensable Parties, ordering Plaintiffs to join Fudge Factory and McGee over Plaintiffs’ opposition.
- ¶ 272: Plaintiffs are informed and believe that McGee recently placed signage and pylons on portions of Exit Road that stated Exit Road was closed and that there was no available access to the Madrona Property via Exit Road. Plaintiffs will attempt to resolve this issue but reserve the right to amend this pleading to add other causes of action against McGee.

Plaintiff’s prayer for relief also requests the following relief:

- ¶ 3: For quiet title as to Easement 1, Easement 2, and the Sign Easements as described in this Supplemental Second Amended Verified Complaint, and that Plaintiff Leslie Bush as Trustee of the Bush Living Trust be declared the owner of these easements, and **that no defendant has any interest in the easements adverse to Plaintiff** (emphasis added)

The plaintiff shall name as defendants in the action the persons having adverse claims to the title of the plaintiff against which a determination is sought. Code of Civil Procedure § 762.010. Code of Civil Procedure § 762.060 requires:

- (a) In addition to the persons required to be named as defendants in the action, the plaintiff may name as defendants “all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest in the property described in the complaint adverse to plaintiff's title, or any cloud upon plaintiff's title thereto,” naming them in that manner.
- (b) In an action under this section, the plaintiff shall name as defendants the persons having adverse claims that are of record or known to the plaintiff or reasonably apparent from an inspection of the property.

(c) If the plaintiff admits the validity of any adverse claim, the complaint shall so state.

Code of Civil Procedure § 761.020 instructs that a verified complaint shall include the following:

(a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any.

(b) **The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title.** If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession.

(c) **The adverse claims to the title of the plaintiff against which a determination is sought.**

(d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.

(e) A prayer for the determination of the title of the plaintiff against the adverse claims. (emphasis added)

Plaintiff has failed to comply with § 761.020's requirements. Plaintiff alleges there are no adverse claims that need to be specified in the causes of action. This argument is unavailing and is in direct contradiction to the Court's ruling on April 17, 2026. The relevant excerpt from the transcript is as follows (Decl. of Kevin James, Ex. A):

The Court: ...This seems to be a very – a seemingly interminable process, but I think having looked at the case and looked at the law and now understanding with the maps, I don't think that there's really any choice from the Court to have to say that that these are indispensable parties that need to be joined. **I think that anybody who is an owner of a property for whom the quiet title action would implicate their property rights, they are an adverse party. There may not be any dispute now, but if they were not joined, then there is a restriction to their property when they are not part of that matter, which was the issue that was raised in the Ranch of the Falls case, and they would not be party to that action to then say we don't want that limit or restriction for whatever reasons.** (emphasis added)

The Declaration of Frances Reinders does not alleviate Plaintiff from complying with CCP § 761.020. There is presently no formal easement agreement. Until this has been completed,

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Fudge Factory remains an adverse party. Despite Plaintiff's hopes to resolve the issues with McGee (SAC ¶ 272), she nevertheless remains an adverse party. Each defendant must be put on notice of the nature of the action against them. The SAC fails to do so.

Plaintiff seeks leave to amend should the Court conclude the SAC should say more about Fudge Factory's and McGee's interests.

There is a general policy in this state of great liberality in allowing amendment of pleadings at any stage of the litigation to allow cases to be decided on their merits. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) The rule of great liberality is particularly important where an amendment is sought to an answer. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159; *Hyman v. Tarplee* (1944) 64 Cal.App.2d 805, 813-814.) "...it is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.' (Citations omitted.) If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (Citations omitted.)" (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) "...absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564, 176 Cal.Rptr. 704.)" (*Board of Trustees of Leland Stanford Jr. University v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) It is irrelevant that new legal theories are introduced in the proposed amended pleading as long as the proposed amendments relate to the same general set of facts in the pleading that will be superseded. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Defendants' motion dismiss for causes of action 1, 2, 4, 5, 7, 8, 10, 11, 13, 15, 16, 18, and 19 is granted with leave to amend.

TENTATIVE RULING #10:

DEFENDANTS' MOTION TO DISMISS FOR CAUSES OF ACTION 1, 2, 4, 5, 7, 8, 10, 11, 13, 15, 16, 18, AND 19 IS GRANTED WITH LEAVE TO AMEND.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.